

10:00 AM

Line 2

25-CIV-07088 GV SOURCE LLC AND ROGER AMANDO PENA vs. ALEJANDRO F. GRAHAM

GV SOURCE LLC AND ROGER AMANDO PENA
ALEJANDRO F. GRAHAM

VINOD NICHANI
Pro Se / CHRISTINE SINNOTT
SPECIALLY APPEARING

Defendant's Motion to Quash Service of Complaint and Summons

TENTATIVE RULING:

After review of the moving papers, opposition and reply, specially appearing Defendant Alejandro F. Graham's ("Defendant") Motion to Quash Service of Summons is GRANTED.

On February 2, 2026, the Court issued an Order allowing alternate service under Code of Civil Procedure ("CCP") Section 413.30 via email and substitute service on two out of state addresses. On April 27, 2026, the Court amended that Order to remove one of the out of state addresses for service. These Orders were based on applications of Plaintiff that demonstrated, at the time, that Plaintiff had been making diligent attempts to effect service, and that therefore electronic service to Defendant and substitute service to Defendant's alleged last know out of state address were "reasonably calculated to give actual notice to the party to be served." CCP § 413.30(a)(1).

However, Defendant moves to quash service on the basis that service must be in compliance with the Hague Service Convention, as Defendant is a citizen and resident of Nicaragua. Motion, pg. 2, ¶ 2. Defendant declares he is a resident and citizen of the country of Nicaragua, and has never resided in the United States. Graham Decl. of 7/1/26, ¶¶ 2-3. Defendant provides that the United States is a member of the Hague Service Convention. Def. MPA, pg. 1, ¶ 1. Defendant did not provide that Nicaragua is also a member of the Hague Service Convention, though Plaintiff also did not argue this to the contrary either. Regardless, the Court takes Judicial Notice under Evidence Code Section 452(f)-(h), that Nicaragua is a member of the Hague Service Convention. See, Hague Service Convention Website indicating Nicaragua joined the service convention on July 24, 2019.

"The scope of the Hauge Service Convention is extremely broad. Article 1 of the Convention provides: The present Convention shall apply in all cases, in civil or commercial matters, where there is occasion to transmit a judicial or extrajudicial document for service abroad. [¶] This Convention shall not apply where the address of the person to be served with the document is not known."

That exception of the address not being known, has the requirement that a party demonstrate reasonable diligence to discover such an address. *Id.* at 1137. *In accord, Label v. Mai* (2012) 210 Cal.App.4th 1154, 1161. Failure to comply with the Hague Service Convention when it does apply, “voids the service even though it was made in compliance with California law.” *Kott v. Superior Court* (1996) 45 Cal.App.4th 1126, 1136.

Plaintiff’s opposition focuses on the diligent efforts at certain last known domestic addresses. Plaintiff’s Declaration then states that in February 2026, he was informed by Defendant’s brother that Defendant was living in Panama with his mother. Pena Decl., ¶ 4. However, this statement lacks detail and standing alone it is arguably inadmissible hearsay. More significantly, throughout its prior ex parte applications, and its opposition papers, Plaintiffs have never indicated any knowledge, or lack of knowledge, of Defendant residing in Nicaragua. This omission is questionable considering the reply papers.

Per the reply, defense counsel contends that “Plaintiff was well aware of the residence and address of the defendant in Nicaragua at the time he applied for alternative service. *This fact was never disclosed to the court.*” Reply, pg. 2, lines 13-16 (emphasis added). The Court agrees, this was not disclosed as it must. Defendant then provides by sworn declaration, that Plaintiff Pena actually visited Defendant Graham, at his home on “numerous occasions” in Managua, Nicaragua. Graham Reply Decl., pg. 2, ¶ 2. One who physically visits a home, would clearly know the address of said home in Nicaragua. Therefore the exception is not applicable, the Hague Service Convention applies, and the prior alternate service is improper.

The motion is GRANTED. As a result, the Court’s February 4, 2026 and April 27, 2026 Orders for alternate service, are rescinded and vacated; the related two Proofs of Service of Summons filed on June 5, 2026 are thus quashed.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
